

The U.P. Government Industrial Training Institutes Workshop Attendant and Store Attendant Service Rules, 1998

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State of Uttar Pradesh - Act

The U.P. Government Industrial Training Institutes Workshop Attendant and Store Attendant Service Rules, 1998

UTTAR PRADESH

India

The U.P. Government Industrial Training Institutes Workshop Attendant and Store Attendant Service Rules, 1998

Rule

THE-U-P-GOVERNMENT-INDUSTRIAL-TRAINING-INSTITUTES-WORKSHOP-ATTENDANT-AND-STORE-ATTENDANT-SERVICE-RULES-1998 of 1998

Published on 19 September 1968

Commenced on 19 September 1968

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The U.P. Government Industrial Training Institutes Workshop Attendant and Store Attendant Service Rules, 1998

Published vide Notification U.P. Gazette, Part 1 (Ka), dated 19th September, 1968

Part I ? General

1.

Short title and commencement.

(1)

These rules may be called "The Uttar Pradesh Government Industrial Training Institutes Workshop Attendant and Store

Attendant Service Rules, 1998".

(2)

They shall come into force at once.

2.

Status of the service.

- The Uttar Pradesh Government Industrial Training Institutes Workshop Attendant and Store Attendant Service is a subordinate service comprising Group 'D' posts.

3.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context-

(a)

"appointing authority" means the Principal Government Industrial Training Institute;

(b)

"Citizen of India" means a person who is or is deemed to be citizen of India under Part II of the Constitution;

(c)

"Constitution" means the Constitution of India;

(d)

"Government" means the State Government of Uttar Pradesh;

(e)

"Governor" means the Governor of Uttar Pradesh;

(f)

"member of the service" means a person substantively appointed under these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the service;

(g)

"other backward classes" means the Backward Classes of citizen specified in Scheduled I of the Uttar Pradesh Public Services (Reservation for Scheduled Castes, Scheduled Tribes and other Backward Classes) Act, 1994;

(h)

"Service" means the Uttar Pradesh Government Industrial Training Institutes Workshop Attendant and Store Attendant Service;

(i)

"substantive appointment" means an appointment not being an ad hoc appointment on a post in the cadre of the Service, made after selection in accordance with the rules and, if there are no rules, in accordance with the procedure prescribed for the time being by executive institutions prescribed by the Government;

(j)

"year of recruitment" means a period of twelve months commencing from the first day of July of calendar year.

Part II ? Cadre

4.

Cadre of service.

(1)

The strength of the Service and of each category of posts therein shall be such as may be determined by the Government from time to time.

(2)

The strength of the Service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (1) be as given below:

Serial No.

Post

Number of post

Permanent

Temporary

Total

1.

Workshop Attendant

250

137

387

2.

Store Attendant

207

120

327

Provided that-

(1)

the appointing authority may leave any vacant post unfilled or the Governor may hold in abeyance any vacant post, without thereby entitling any person to compensation; or

(2)

the Governor may create such additional permanent or temporary posts as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the various categories of posts in the Service shall be made direct recruitment through the Selection Committee.

6.

Reservation.

- Reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the provisions of Uttar Pradesh Public Services (Reservation for Physically Handicapped, Dependents of Freedom Fighters and Ex-Serviceman Act, 1993 and the Uttar Pradesh Public Services (Reservation for Scheduled Castes, Scheduled Tribes and other Backward Classes) Act, 1994, as amended from time to time, and the orders of the Government in force at the time of recruitment.

Part IV ? Qualifications

7.

Nationality.

- A candidate for recruitment to a post in the Service must be-

(a)

a citizen of India;

(b)

a Tibetan refugee who came over to India before the 1st January, 1962, with the intention of permanently settling in India; or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Sri Lanka or any of the East African countries of Kenya, Uganda and the United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India:

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required, to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh:

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in Service beyond a period of one year, shall be subject to his acquiring Indian Citizenship.

Note. - A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, may be admitted to a examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic qualification.

(1)

A candidate for recruitment to various categories of posts in the Service must possess the following qualifications-

(i)

must have passed class VIII Examination or Junior High School Examination, and

(ii)

must have a Certificate in any Technical Trade from the National Council. For Training in Vocational Traders.

9.

Preferential qualification.

- A candidates who has-

(i)

served in the Territorial Army for a minimum period of two years; or

(ii)

obtained a 'B' certificate of National Cadet Corps;

shall other things being equal, be given preference in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment must have attained the age of 18 years and must not have attained the age of more than 32 years on the first day of July of the Calendar year in which the vacancies for recruitment are advertised:

Provided that the upper age-limit in the case of candidates belonging to the Scheduled Castes, Scheduled Tribes and such other categories as may be notified by the Government, from time to time shall be greater by such number of years as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the Service must be such to render him suitable in all respects for employment in Government service. The appointing authority shall satisfy itself on this point.

Note. - Person dismissed by the Union Government or a State Government or by a Local Authority or a Corporation or Body owned or controlled by the Union Government or a State Government shall be ineligible for appointment to any post in the Service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate who has married a man already having a wife living shall not be eligible for appointment to a post in the Service:

Provided that the Government may, if satisfied that there exist special grounds for doing so, exempt any person from the operation of this rule.

13.

Physical fitness.

- No candidate shall be appointed to a post in the service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for appointment he shall be required to produce a Medical Certificate of fitness in accordance with the rules framed under Fundamental Rule 10 contained in Chapter III of the Financial Hand Book, Volume II, Part III.

Part V ? Procedure for Recruitment

14.

Determination of vacancies.

- The appointing authority shall determine and notify to the Employment Exchange, in accordance with the rules and orders for the time being in force, the number of vacancies to be filled during the course of the year for recruitment as also the number of vacancies to be reserved for candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories under Rule 6. The appointing authority may also invite applications directly from the persons who have their names registered in the Employment Exchange. For this purpose the appointing authority shall issue an advertisement in local daily newspaper besides pasting the notice for the same on the notice board. All such applications shall be placed before the Selection Committee.

15.

Procedure for direct recruitment.

(1)

For the purpose of direct recruitment, there shall be constituted a Selection Committee comprising:

1. Appointing Authority.

2. An officer belonging to the Scheduled Castes or Scheduled Tribes, nominated by the appointing authority, if the appointing authority does not belong to the Scheduled Castes or Scheduled Tribes. If the appointing authority belongs to the Scheduled Castes or Scheduled Tribes to be nominated by the appointing authority.

3. One officer nominated by the appointing authority belonging to the other Backward classes. If such suitable officer is not available in his department or organisation such officer shall, on the request of the appointing authority by nominated by the District Magistrate and on his failure to do so by reason of non-availability of suitable officer such officer shall be nominated by the Divisional Commissioner.

(2)

The Selection Committee shall having regard to the need for securing due representation of the candidates belonging to the Scheduled Castes or Scheduled Tribes and other categories under Rule 6, call for interview such number of candidates as fulfil the requisite qualification.

(3)

The Selection Committee shall prepare a list of candidates in order of merit as disclosed by aggregate or percentage of marks obtained by them in the technical trade certificate examination, conducted by the National Council for Training in Vocational Trades and interview. If two or more candidates obtain equal marks, the candidate having higher marks in the Technical Trade Certificate Examination shall be placed higher in the list. The number of the names in the list shall be larger (but not larger by more than twenty five per cent) than the number of vacancies. The Selection Committee shall forward the list to the appointing authority.

Part VI ? Appointment, Probation, Confirmation and Seniority

16.

Appointment.

(1)

The appointing authority shall make appointments by taking the names of candidates in which they stand in the list prepared under Rule 15.

(2)

If more than one orders of appointment are issued in respect of any one selection, a combined order shall also be issued, mentioning the name of the persons in order of seniority as determined in the selection.

17.

Probation.

(1)

A person on substantively appointment to a post in the Service shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases specifying the date upto which the extension is granted:

Provided that, save in exceptional circumstances, the period of probation shall not be extended beyond one year and in no circumstances beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation or the extended period if probation that a probationer has not made sufficient use of his opportunities, he may be reverted to his substantive post, if any, and if he does not hold to lien on any post, his services may be dispensed with.

(4)

A probationer who is reverted or whose services are dispensed with under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service, rendered in an officiating or temporary capacity in a post included in the cadre or any other equivalent or higher post, to be taken into account for the purpose of computing the

period of probation.

18.

Confirmation.

(1)

Subject to the provisions of sub-rule (2) a probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation if-

(a)

his work and conduct is reported to be satisfactory,

(b)

his integrity is certified, and

(c)

the appointing authority is satisfied that he is otherwise fit for confirmation.

(2)

Where, in accordance with the provisions of the Uttar Pradesh State Government Servants Confirmation Rules, 1991, Confirmation is not necessary the order under sub-rules (3) of Rule 5 of these rules declaring that the person concerned has successfully completed the probation shall be deemed to be order of confirmation.

19.

Seniority.

- The seniority of persons substantively appointed in any category of posts shall be determined in accordance with the Uttar Pradesh Government Servants Seniority Rules, 1991 as amended from time to time.

Part VII ? Pay Etc.

20.

Scale of pay.

(1)

The scale of pay admissible to persons appointed to the various categories of posts in the service shall be such as may be determined by the Government from time to time.

(2)

The scales of pay at the time of the commencement of these rules are given as follows:

Serial No.

Name of the post

Scale of pay

1.

Workshop Attendant

Rs. 2,550-55-2,660-60-3,200.

2.

Store Attendant

Rs. 2,550-55-2,660-60-3,200.

21.

Pay during probation.

(1)

Notwithstanding any provision in the Fundamental Rules to the contrary, a person on probation if he is not already in permanent Government Service, shall be allowed his first increment in the time scale when he has completed one year of satisfactory service, and second increment after two years service when he has completed the probationary period is also confirmed.

(2)

The pay during probation of a person who was already holding a post under the Government shall be regulated by the relevant fundamental rules.

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules, applicable generally to Government servants serving in connection with the affairs of the State.

22.

Criteria for crossing efficiency bar.

- No persons shall be allowed to cross the efficiency bar unless, his work and conduct is found to be satisfactory and unless his integrity is certified.

Part VIII ? Other Provisions

23.

Canvassing.

- No recommendations, either written or oral, other than those required under the rules applicable to the post or service will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature will disqualify him for appointment.

24.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or special orders, persons appointed to the service shall be governed by the rules, regulations and orders applicable generally to Government servants, serving in connection with the affairs of the State.

25.

Relaxation from the conditions of services.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of service of persons appointed to the Service causes undue hardship in any particular case, it may, notwithstanding anything contained in the rules applicable to the case, by order, dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner.

26.

Savings.

- Nothing in these rules shall affect reservations and other concessions required to be provided for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the orders of the Government issued, from time to time, in this regard.

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